25AVCV01285 25AVCV01285

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C08%2F04%2F2026

Source SHA-256: a1d7fda1c1b5d6a6b4db31b01d40813d80e4338f6c1db35572168289d76df995

Case Number: 25AVCV01285 Hearing Date: August 4, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

LANCE ROGERS GREENE, an individual,

Plaintiff,

v.

GENERAL MOTORS, LLC, a Delaware Limited Liability Company, and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV01285

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 4, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an action arising from Defendant General Motors, LLC’s (Defendant) alleged breach of the Song-Beverly Consumer Warranty Act (Song-Beverly Act).

On October 1, 2025, Plaintiff Lance Rogers Greene (Plaintiff) filed a complaint against Defendant, asserting two causes of action for (1) Violation of the Song-Beverly Act for Breach of Express Warranty and (2) Violation of the Song-Beverly Act for Breach of Implied Warranty, arising from his lease of a vehicle from Defendant.

On October 31, 2025, Defendant filed an answer to the complaint.

On February 27, 2026, Plaintiff filed a notice of conditional settlement of the entire case. The Court set an order to show cause (OSC) re dismissal for April 30, 2026.

On April 9, 2026, Plaintiff filed the present motion for attorney’s fees, costs, and expenses.

On April 30, 2026, Plaintiff’s complaint was dismissed without prejudice, with the Court retaining jurisdiction pursuant to California Code of Civil Procedure, section 664.6.

On July 22, 2026, Defendant filed its opposition.

On July 28, 2026, Plaintiff filed his reply.

II. Request for Judicial Notice

Plaintiff requests that the Court take judicial notice of two Los Angeles Superior Court minute orders approving Plaintiff’s counsel’s hourly rates and granting Plaintiff’s requests for attorney’s fees, costs, and expenses in separate Song-Beverly cases. (See RJN, p. 2, ¶¶ 1-2.)

California Evidence Code section 452 permits judicial notice being taken of the records of any court in California. (Evid. Code, § 452, subd. (d).) California Evidence Code section 453 mandates a court take judicial notice of a matter specified in section 452 if a party so requests, gives the adverse party sufficient notice through pleadings or otherwise, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code, § 453, subd. (a), (b).)

The Court finds that the two documents are records of the California court, have been sufficiently identified by Plaintiff, and were served along with the present motion, providing sufficient notice to Defendant through the moving papers.

Accordingly, Plaintiff’s Request for Judicial Notice is GRANTED. The Court notes that these orders are not binding or precedential.

III. Legal Standard

Standard for Motion for Attorney's Fees, Costs, and Expenses – Under Civil Code section 1794, subdivision (d), the prevailing buyer under the Song-Beverly Consumer Warranty Act is entitled to fees that were reasonably incurred: "If the buyer prevails under this section, the buyer shall be allowed by the Court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) The trial court has an obligation to award only those attorneys' fees that are reasonable. (See PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-96; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) A prevailing party includes the party with a net monetary recovery in settlement of the case. (Code Civ. Proc., § 1032, subd. (a)(4).)

The lodestar method is the primary method for determining a reasonable attorney fee award under section 1794, subdivision (d). (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818-19.) "A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case." (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321 [internal quotations omitted].) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience an expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448 (citations omitted).) "The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time." (Horsford v. Board of Trustees Of California State University (2005) 132 Cal.App.4th 359, 395.) "The law is clear, however, that¿an award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of $450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664; see also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 ["[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate."].)

IV. Discussion

Application – Plaintiff requests an order for attorney's fees, costs, and expenses amounting to $29,445.59 pursuant to a signed settlement agreement (Settlement), the Song-Beverly Act, California Civil Code section 1794, subdivision (d), and calculated using the lodestar formula. (Notice of Motion, p. 2:4-7, 11.) This total is comprised of (1) $20,211.00 for attorney's fees, (2) $6,063.30 for an enhancement of attorney's fees by a multiplier of 1.3, (3) $896.28 for costs and expenses, and (4) $1,750.00 with a 1.3 times multiplier for a total of $2,275.00 in anticipated fees for attending the hearing. (Notice of Motion, p. 2:12-16.)

a. Entitlement to Attorney's Fees, Costs, and Expenses

Here, there is no dispute that Plaintiff is the prevailing party to this litigation, nor that he is entitled to recover reasonable attorney's fees, costs, and expenses incurred in litigation. The settlement offer establishes that Plaintiff accepted the offer, which states, in relevant part, "GM LLC shall pay to Plaintiff Counsel…(ii) Reasonable attorneys' fees, costs, and expenses pursuant to subdivision (d) of Section 1794 of the Civil Code shall be determined by the court by way of a noticed motion. Defendant agrees Plaintiff is the prevailing party for purposes of said fee motion." (Hensley Decl., Ex. A, p. 1.)

In any event, it is undisputed that this settlement offer was accepted by Plaintiff, and it is undisputed that Plaintiff elected for his attorney's fees, costs, and expenses to be determined by the Court on noticed motion pursuant to Section 1794, subdivision (d). (Opp., p. 1:27-28.) Where an accepted settlement offer designates the Plaintiff as the prevailing party and specifically delegated determination of fees to the Court, it thereby entitles the Plaintiff to bring the subject motion. (Engle v. Copenbarger & Copenbarger, LLP (2007) 157 Cal.App.4th 165, 168-69.)

b. Reasonableness of Attorney's Fees Amount

As discussed, the standard method for calculating reasonable attorney's fees is the lodestar method, which determines recoverable fees by multiplying the reasonable hourly rate of the attorneys by the reasonable number of hours billed for the work performed.

i. Reasonableness of Attorneys' Hourly Rates

The Declaration of Logan Hensley, Plaintiff's counsel, sets forth the autobiographies and hourly rates of five billing attorneys who worked on this case. Their names, hourly rates, and titles are as follows:

1. Logan Hensley – litigation attorney, admitted to California State Bar in 2021, $500/hr.

2. Laural Goolsby – senior litigation attorney, admitted to California State Bar in 2018, $600/hr.

3. Ahmed Yousef – associate litigation attorney, admitted to California State Bar in 2023, $500/hr.

4. Marisa Mittelman – lead pre-litigation attorney, admitted to California State Bar in 2014, $550/hr.

5. Oliver Tomas – pre-litigation and appearance attorney, admitted to California State Bar in 2002, $550/hr.

(Hensley Decl., ¶ 13, Ex. B.)

Hensley also sets forth the names and hourly rates of paralegals and staff who billed for work done on the case. Their names, titles, and hourly rates are as follows:

1. Jennifer Romo – general manager, $225/hr.

2. Virginia Walls – paralegal, $250/hr.

3. Clarence May Serrano – paralegal, $270/hr.

4. Katelyn Gilkey – litigation case manager, $200/hr.

5. Jose Gonzalez – case manager, $200/hr.

6. Carlos Salinas – firm motion writer, $250/hr.

7. Christian Abad – case manager assistant, $150/hr.

8. Caleth Ibarra – litigation case manager, $200/hr.

9. Nikolas Mancera – pre-litigation case manager and demand drafter, $150/hr.

Sven Mora also billed significantly on this matter, but his entries have been stricken from total costs requested in the present motion as his work is clerical in nature.

(Hensley Decl., ¶ 13, Ex. B.)

Defendant does not argue that any of these rates are unreasonable or should be reduced. The Court also finds that none of these hourly rates are facially excessive or unreasonable. As the issue of rate reasonableness is uncontested, the Court accepts counsel's rates for the purposes of this motion. This ruling should not be construed by any other court that this Court has found, after a disputed adjudication, that Plaintiff's counsel's rates are reasonable.

Accordingly, the rates requested for the billing attorneys, paralegals, and staff are accepted as requested.

ii. Reasonableness of Hours Billed

Plaintiff's counsel contends that they reasonably spent 63.3 hours in prosecuting this action in the approximately twelve months from retention through settlement. (Motion, p. 9:3-8.)

In opposition, Defendant argues that Plaintiff's request should be denied or significantly reduced by 39.3 hours ($10,731) and the request for anticipated fees should be denied in its entirety. (Opp., p. 5:22-26.)

Defendant specifically objects to the following charges and requests the specified reduction:

1. Pre-litigation tasks – 3.1 hours ($785.00) billed on April 24 and May 5, 2025 – reduce by 2.6 hours ($685) (Opp., p. 3:12-17);

2. Review of 18 pages of client documentation – 1.4 hours ($725) billed by two attorneys on June 16 and July 18, 2025 – reduce by 1.1 hours ($575) (Opp., p. 3:18-24);

3. Preparation of complaint – 4.2 hours ($1,275) billed July 2, 18, and September 23, 30, 2025 – reduce by 3.7 hours ($1,150) (Opp., p. 3:25-4:4);

4. Reviewing document production – 1.2 hours ($600) billed December 23, 2025 – reduce by 0.7 hours ($350) (Opp., p. 4:5-10);

5. Fee motion and anticipated time – 6.4 hours ($3,200) billed on April 2, 2026 – reduce fee motion fees by 3.4 hours ($1,700) and strike all anticipated time (Opp., p. 4:11-21);

6. Time communicating with Defendant– 1.8 hours ($990) billed throughout the case – reduce by 1.3 hours ($715) (Opp., p. 4:22-5:2);

7. Time billed by paralegals and case managers – 26.5 hours ($5,556) billed throughout the case – strike entirely (Opp., p. 5:3-18).

Defendant also argues that the fees requested should be reduced by 10% because 14 timekeepers billed on the matter, resulting in excessive communications, filed reviews, repetitive and redundant work, and attorneys editing their own work. (Opp., p. 6:18-25.)

The prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson, supra, 144 Cal.App.4th at 817.) The party seeking attorney fees "'is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him].'" (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) Therefore, if the "time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

The detailed billing records Plaintiff has submitted to validate the billed hours for which Plaintiff requests reimbursement "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford, supra, 132 Cal.App.4th at p. 396.) On presentation of a detailed fee bill, accompanied by a sworn affidavit as to the accuracy of the fee bill, the bill is presumed credible, and the court must use these records as a starting point for its lodestar determination. (Id at 396-97.)

Here, the Court has reviewed the entire file in this matter (which is quite brief) and finds much of Plaintiff's counsel's billing to not be reasonable. reasonable. For instance, in the 56-paragraph complaint, there are perhaps only three paragraphs (nos. 7, 20, and 26) that contain any information regarding the vehicle at issue, and even those paragraphs do not more than identify the vehicle, when it was sold, and when problems arose. The Complaint does not even describe what's wrong with the vehicle. Every allegation in the Complaint is generic.

Having reviewed the materials, and considering the short time-span of this case, the Court makes the following adjustments to the time billed by attorneys:

1. Pre-litigation tasks – 3.1 hours ($785.00) billed on April 24 and May 5, 2025 – reduce by 2.1 hours ($445) to 1 hour.

2. Review of 18 pages of client documentation – 1.4 hours ($725) billed by two attorneys on June 16 and July 18, 2025 – reduce by 1 hour ($500) to 0.4 hours.

3. Preparation of complaint – 4.2 hours ($1,275) billed July 2, 18, and September 23, 30, 2025 – reduce by 3.2 hours ($1,025) to 1.0 hour.

4. Fee motion– 6.4 hours ($3,200) billed on April 2, 2026 – reduce fee motion fees by 3.4 ($1,700) hours to 3 hours.

The Court does not find it appropriate to reduce or strike billing entries for client communication. Attorneys have a legal and ethical obligation to promptly provide their clients with updates and advise them on the progress of their case, and the Court finds entries related to client communication reasonable, necessary, and appropriate. The Court similarly declines to strike or reduce time spent communicating with Defense counsel, as it appears reasonable, necessary, and Defendant has submitted no evidence refuting the time actually spent in said correspondence. The Court also finds 3.5 hours of anticipated time for reviewing Defendant's opposition, preparing a reply, and preparing for and attending the hearing reasonable.

The Court also agrees with Defendant's characterization of many of the paralegal and case manager charges as secretarial or clerical in nature, and notes that many of these entries do not constitute substantive legal work. While calendaring dates, properly recording and saving client files and Court documents, and coordinating appearances by counsel are important and necessary tasks in litigation, these tasks are secretarial in nature and do not warrant attorney, or even paralegal, billing. As the United States Supreme Court has held: "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them. What the court in Johnson v. Georgia Highway Express, Inc., 488 F. 2d 714, 717 (1974), said in regard to the work of attorneys is applicable by analogy to paralegals: 'It is appropriate to distinguish between legal work, in the strict sense, and investigation, clerical work, compilation of facts and statistics and other work which can often be accomplished by non-lawyers but which a lawyer may do because he has no other help available. Such non-legal work may command a lesser rate. Its dollar value is not enhanced just because a lawyer does it.'" (Missouri v. Jenkins (1989) 491 U.S. 274, 288 n.10.) Thus, while the Court finds the time spent on this task to be reasonable absent evidence to the contrary, billing these tasks as attorney or paralegal fees is unwarranted.

Furthermore, staffing a routine, simple Song-Beverly action with over ten timekeepers may result in inefficiency, unreasonable billing, duplicative work, and excessive review. This is not always the case, however, the detailed billing records provided by Plaintiff identify excessive time for the tasks completed, including large amounts of time billed for internal correspondence, support staff meetings and communications with the attorneys, and excessive review of the case during internal meetings. Based on the nature of these entries derived from the internal description of the work done, the Court finds that the staffing likely contributed to excessive time billed for correspondence and review of the client's file.

Therefore, the Court strikes or reduces the following billing entries for being secretarial by nature or excessive:

1. April 23, 2025 – 0.2 stricken ($45) – billed for "Set up case file and assigned tasks to support staff."

2. April 24, 2025 – 0..4 stricken ($60) – billed for "Sent demand letter via certified mail."

3. April 25, 2025 – 0.4 stricken ($80) – billed for "Uploaded and tagged DL"

4. April 25, 2025 – 0.3 stricken ($60) – billed for "Uploaded more documents to client folder."

5. May 7, 2025 – 0.3 stricken ($60) – billed for "Called client Left VM."

6. May 8, 2025 – 0.3 stricken ($60) – billed for "Uploaded new RO (open) Added to chron."

7. July 18, 2025 – 0.4 stricken ($200) – billed for "Internal correspondence re: settlement offer pending for repurchase."

8. September 9, 2025 – 0.1 stricken ($55) – billed for "Telephone call to GM rep, no ans, left VM."

9. September 9, 2025 – 0.1 stricken ($55) – billed for "Telephone call to client, no ans, left VM."

10. September 17, 2025 – 0.1 stricken ($20) – billed for "Internal Correspondence: informed atty of client auth for lit."

11. September 18, 2025 – 0.3 stricken ($60) – billed for "Internal Correspondence: emailed atty regarding client offer"; "Internal Correspondence: emailed atty confirming email thread in Clio"; and "Internal Correspondence: emailed thread to Clio per atty instructions."

12. September 24, 2025 – 0.1 stricken ($20) – billed for “Confirmed client case was moved to pending litigation.”

13. September 30, 2025 – 0.6 stricken ($150) – billed for “Filed via OneLegal complaint, CCCS, CCCSA, summons, revised courthouse (Antelope Valley).”

14. October 10, 2025 – 0.3 stricken ($75) – billed for “Re-submitted Complaint package due to court’s request.”

15. October 2, 2025 – 0.6 stricken ($140) – billed for “Review file with Jennifer Romo, Marissa Mittleman, Virginia Walls and Logan Hensley” and “huddle with team re client requests.” – the Court also notes that any potential patent claim is unrelated to the underlying litigation.

16. October 3, 2025 – 0.3 stricken ($75) – billed for “Summons were rejected by court a second time (Information requested was included but overlooked by clerk).”

17. October 3, 2025 – 0.1 stricken ($25) – billed for “Attended meeting for support staff.”

18. October 20, 2025 – 0.4 stricken ($100) – billed for “Receipt & review of:: minute order: calendar CMC; tasked draft NTC.”

19. October 31, 2025 – 0.3 stricken ($150) – billed for “Internal Correspondence:: Internal correspondence regarding protective order and deposition of plaintiff.”

20. November 10, 2025 – 0.4 stricken ($100) – billed for “Def's Answer, calendared receipt and AB1755 deadlines and task to complete 871.26 requirements. updated related contacts.”

21. December 1, 2025 – 0.2 stricken ($40) – billed for “Reviewed file during calendar meeting with LH & VW.”

22. December 1, 2025 – 0.4 stricken ($100) – billed for “Draft: NOD PMQ; serve and saved. drafted email re mediation and PMQ availability.”

23. December 8, 2025 – 0.5 stricken ($125) – billed for “Draft CMC; eFiled; saved and served. updated calendar. tasked prep propounded disc.”

24. December 17, 2025 – 0.7 stricken ($105) – billed for “Draft: Updated chronology.”

25. December 29, 2025 – 0.2 stricken ($40) – billed for “Review File: Reviewed file during calendar meeting with Logan Hensley and Virginia Walls.”

26. December 20, 2025 – 0.2 stricken ($150) – billed for “Draft: Redact attorney-client privileged information from document production.”

27. January 12, 2026 – 0.1 stricken ($20) – billed for “Internal Correspondence:: Sent email internally re depo prep.”

28. January 13, 2026 – 0.5 stricken ($125) – billed for “Receipt & review of:: OC email re available PMQ dates; confirmed date; calendared; drafted NOD and served. Saved to file.”

29. January 13, 2026 – 0.5 stricken ($125) – billed for “Internal Correspondence:: re mediation deadline and oc practices.”

30. January 13, 2026 – 0.3 stricken ($150) – billed for “Internal Correspondence regarding Deposition and Notice of Association of Counsel.”

31. January 19, 2026 – 0.1 stricken ($20) – billed for “Internal Correspondence:: Sent email internally re client depo prep.”

32. January 26, 2026 – 0.2 stricken ($40) – billed for “Review File: Reviewed file during calendar meeting with Logan Hensley and Virginia Walls.”

33. January 28, 2026 – 0.3 stricken ($75) – billed for “Internal Correspondence:: re status of settlement and PL deposition. updated calendar.”

34. January 29, 2026 – 0.3 stricken ($81) – billed for “Internal Correspondence:: Discussed deadlines and calendar.”

35. January 29, 2026 – 0.3 stricken ($150) – billed for “Internal Correspondence:: Internal correspondence regarding settlement.”

36. January 30, 2026 – 0.2 stricken ($40) – billed for “Internal Correspondence:: sent deadlines to atty.”

37. January 30, 2026 – 0.3 stricken ($75) – billed for “Receipt & review of:: Atty email re outcome of CMC; calendared OSC re NOS date. delete vacated deadlines.”

38. February 3, 2026 – 0.2 stricken ($40) – billed for “Process & Upload:: Reviewed, uploaded, and sent SAR for client signature.”

39. March 24, 2026 – 0.2 stricken ($50) – billed for “Review File: calendared and tasked deadline for draft and file MAF.”

40. March 26, 2026 – 0.4 stricken ($200) – billed for “Draft: Conduct audit of billing entries and costs for matter.”

41. April 1, 2026 – 0.1 stricken ($15) – billed for “Review File: Reviewed existing ROs and confirmed no need to update chronology yet.”

42. April 2, 2026 – 0.3 stricken ($500) – billed for “Internal Correspondence:: Internal correspondence regarding Motion for Attorney Fees.”

43. April 2, 2026 – 0.7 stricken ($350) – billed for “Draft: Compile all billing records for Motion for Attorney Fees, combine into PDF format, including conducting a final and extensive billing audit to ensure accuracy.”

Aside from the entries specifically identified above as being reduced or stricken entirely, the Court finds the billing entries reasonably and necessarily incurred in litigation absent evidence from Defendant to the contrary.

iii. Lodestar Calculation

Based on the foregoing, the Court calculates the amount of reasonable attorney's fees Plaintiff is entitled to recover by multiplying the number of reasonably billed hours for work on this case by the reasonable hourly rate of the billing attorneys.

From Plaintiff's $20,211.00 attorney's fee request for 63.3 hours of work, the Court strikes 22.9 hours, for a total reduction of $7,821. Plaintiff's request for $1,750 for 3.5 hours of anticipated work is granted. Defendant's request to reduce the billed hours by 10% is denied, as excessive, clerical, or unreasonable billing has already been individually stricken from the total costs awarded.

Accordingly, Plaintiff is entitled to recover $14,140 in reasonably incurred attorney's fees.

c. Fee Multiplier

Plaintiff requests a fee multiplier of 1.3 to the lodestar amount given the result obtained, the delay in payment, and the risk associated with contingency-based representation. (Motion, p. 18:13-22.)

Once the Court has determined¿an appropriate lodestar¿figure, the court may then determine whether that figure should be adjusted with a positive or negative multiplier. (Graham v. DaimlerChrysler Corp.¿(2005) 34 Cal.4th 553, 582.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; (4) the skill exhibited by counsel; (5) the extent to which the nature of the litigation precluded other employment by the attorneys; and (6) the contingent nature of the fee award based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (Consumer Privacy Cases¿(2009) 175 Cal.App.4th 545, 556; Robertson, supra, 144 Cal.App.4th at 819.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit."¿(Graham supra, 34 Cal.4th at 582.)¿

In opposition, Defendant argues that this case does not warrant a fee multiplier because there was nothing novel, difficult, or unique about the present case or its outcome, as it is a standard Song-Bevely action in which the issues presented are virtually identical case to case, the case spanned only six months and presented no unusual or complex issues, there was no unique skill required to obtain Plaintiff's outcome, and the outcome was no more extraordinary than other similar Song-Beverly actions. (Opp., p. 7:8-23.)

The Court finds that a multiplier is not warranted in this case. While Plaintiff received an excellent result in settlement, and while Plaintiff's counsel took this case on contingency, this is a standard Song-Beverly action. While the Court acknowledges that there is inherent risk in taking a case on contingency, the Court finds the risk in this action to be minimal considering a prevailing buyer in a Song-Beverly action is legally entitled to recovery of all reasonable and necessary attorney's fees, costs, and expenses incurred pursuant to Code of Civil Procedure section 1794, subdivision (d). Based on the relatively sparse record, the similarly short time span of the litigation, the lack of any depositions or extraordinary discovery efforts, and the moving and opposition papers filed for the present motion, the Court does not find the novelty or difficulty of the legal and factual issues involved, nor the skill required of Plaintiff's counsel in this case, rising to the level of warranting a multiplier.

Accordingly, Plaintiff's request for a fee multiplier is DENIED.

d. Costs and Expenses

Plaintiff requests costs and expenses totaling $896.28. (Notice of Motion, p. 2:16; Memorandum of Costs.) The costs and expenses requested include filing and motion fees, fees for hosting electronic documents, service of process, and filing and service fees. (Memo. Of Costs.) Plaintiff also attaches invoices from One Legal to substantiate the costs requested, the dates incurred, and the nature of the charge. (See Memo. of Costs Attachments.)

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Ladas v. California State Auto. Assn. (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ibid.)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) “Any notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum.” (Cal. Rules of Court, rule 3.1700(b)(1).)

In opposition to Plaintiff’s request, Defendant requests that the Court reduce the costs in the amount of $226.03 on the grounds that Plaintiff has provided no explanation or evidence for the costs requested to substantiate the request and that certain of the costs, namely One Legal’s convenience fees, e-filing charges, and disbursement administration charges, were incurred solely for the convenience of Plaintiff, which is excluded under Code of Civil Procedure, section 1033.5, subdivision (a). (Opp., p. 9:15-20.)

To start, the Court must permit the prevailing buyer to recover such costs and expenses if reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) This statutory language has been expressly found by courts to exceed the scope of Section 1033.5, subdivision (a). (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138 (overruled in part on other grounds in Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189) [a prevailing buyer-plaintiff under the Song-Beverly Act may recover fees and expenses where otherwise prohibited under Section 1033.5 subdivision (b), as they are covered under "costs and expenses" in California Civil Code section 1794, subdivision (d)].) The party filing a memorandum of costs is not required to attach any supporting documents. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) “[A]¿verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to¿demonstrate¿that they were not reasonable or necessary.”¿(Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 989, internal citations omitted; see also Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 ["trial court erred in requiring additional proof from” the party claiming costs when party opposing costs bore the burden of proving the cost unnecessary or unreasonable]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 116, 121 [“where a party shows a prima facie entitlement to costs, the burden is on an objector to prove the costs should be disallowed”].) The burden is on the party opposing the memorandum to either (a) show that the request is facially improper or (b) produce some evidence to show that the request is improper. (Bender, supra, 217 Cal.App.4th at 989.)

Here, the burden is on Defendant to show that the costs included on Plaintiff’s Memorandums of Costs are unreasonable or unnecessary. Defendant has provided no evidence that any of these fees or costs are unreasonable. Further, while Defendant objects to certain fees, such as convenience and e-filing fees, the Court finds no reason to deny the requested relief, as Section 1794, subdivision (d) is far more expansive than Section 1033.5, attorneys are required to e-file documents, and service providers often include standard charges such as the ones Defendant takes issue with here for processing payments and other administrative expenses.

Defendant is also incorrect that further supporting documentation is needed, and Defendant fails to point to a single entry which is neither allowable nor reasonably necessary. In reviewing Plaintiff’s Memorandum of Costs, none of the costs or expenses for which Plaintiff seeks reimbursement are facially improper.

In the absence of evidence or argument to the contrary, the Court finds that Plaintiff's request of $896.28 in costs is reasonable and recoverable.

Accordingly, Plaintiff's request for attorney's fees, costs, and expenses incurred in prosecuting this litigation is GRANTED in the total amount of $15,036.28, consisting of $14,140 in attorney's fees and $896.28 in costs.

Separately, the Court notes that the billing records provided by Plaintiff's counsel were entirely unredacted. Counsel is admonished from filing unredacted billing records where substantive content of their communications with their client are detailed within. See, for example, time entries from October 2, 2025 and October 20, 2025.

V. Conclusion

Plaintiff Lance Rogers Greene's Motion for Attorney's Fees, Costs, and Expenses is GRANTED in the amount of $15,036.28.

Defendant General Motors, LLC shall forward payment in full within 30 days of this Order unless otherwise mutually agreed upon by the parties.